

OFFICE OF THE SECRETARY

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February 11, 2019

The Honorable Peter C. Deddeh
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112

Re: Edward Shell
CDC No: H20804
Case No: SCD126559
Date of Sentence: July 15, 1997

Dear Honorable Peter C. Deddeh:

The purpose of this letter is to recommend a recall of sentence and resentence for, inmate Edward Shell, pursuant to Penal Code (PC) Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Since his arrival to the California Department of Corrections and Rehabilitation on July 21, 1997, inmate Shell has remained disciplinary free and has taken full advantage of opportunities to assist him into a successful transition back into society. Shell has completed self-help activities including; Life Skills, Anger Management, Breaking Barriers and various classes through the Folsom State Prison, Peer Education Program. Shell is normally sought after and assigned to clerk positions where he always receives Exceptional on his Work Supervisors Reports.

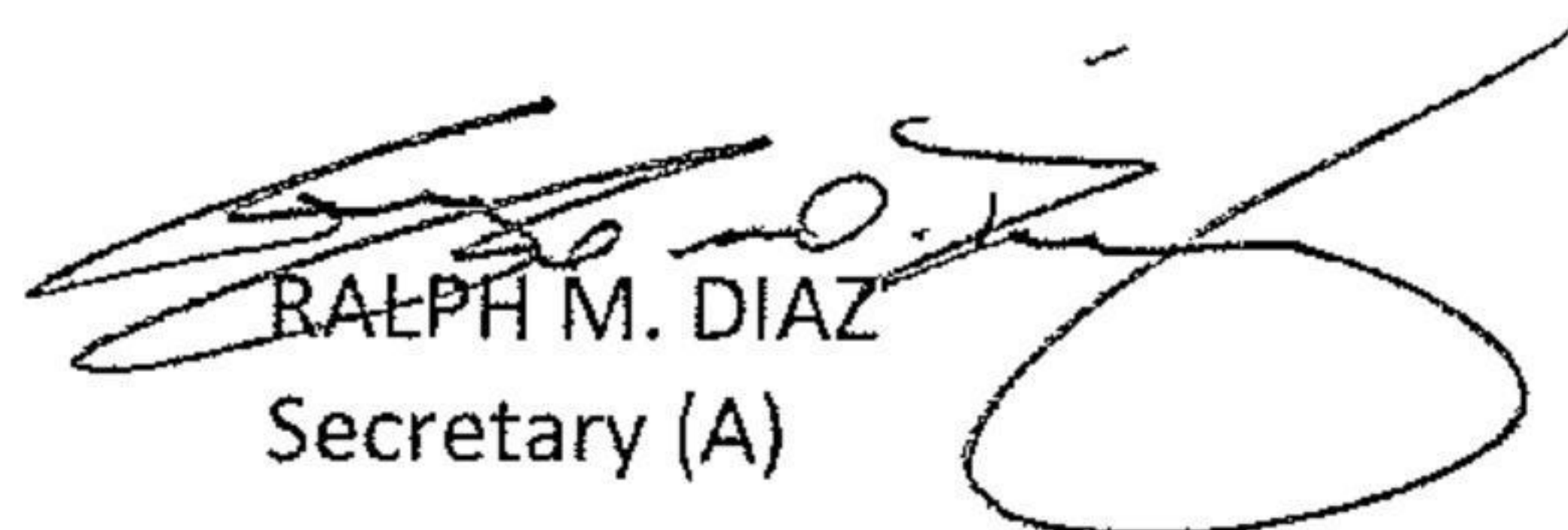
Inmate Shell is respected by staff and volunteers because he takes pride in his work and is always willing to assist staff and other inmates. It should be noted that Shell has provided ten random urine samples during his incarceration and has never tested positive for use of any controlled substances.

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Having reviewed the enclosed documentation, it appears that inmate Shell's sentence warrants the attention of the court. Pursuant to PC Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Michael M. Roddy, County Court Executive Officer
San Diego County District Attorney's Office
San Diego County Public Defender's Office